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Case Number: 24NWCV01937 Hearing Date: July 13, 2026 Dept: SED

ESTATE OF CARLOS MANUEL

SANCHEZ URTADO, ET AL. V. CITY OF DOWNEY, ET AL.

CASE NO.: 24NWCV01937

HEARING: 07/13/2026 @ 9:30 a.m.

#13

TENTATIVE ORDER

Based on the foregoing,

Defendant City of Downey's demurrer to Plaintiffs' Second Amended Complaint is
SUSTAINED WITHOUT LEAVE TO AMEND.

Moving party to give notice.

Defendant City of Downey (City) demurs

as to the Second Amended Complaint (SAC) of Plaintiffs Estate of Carlos Manuel
Sanchez Urtado and Teresa Alvarez, an individual and as successor in interest
of Decedent Carlos Manuel Sanchez Urtado (collectively, Plaintiffs).

Background

On September 25, 2025, Plaintiffs
filed their First Amended Complaint (FAC) against Defendants City of Downey,
City of South Gate, County of Los Angeles, State of California, California
Department of Transportation, Irene Maria Garcia, and Does 1 through 50,

inclusive (collectively, Defendants), asserting four causes of action: (1) Dangerous Condition of Public Property; (2) Wrongful Death; (3) Negligence; and (4) Negligent Entrustment.

On December 30, 2025, the City demurred Plaintiffs' FAC as to the sole cause of action asserted against it for Dangerous Condition of Public Property.

On April 16, 2026, the Court sustained the City's demurrer with leave to amend.

On May 1, 2026, Plaintiffs filed the operative SAC against the City asserting a sole cause of action for Dangerous Condition of Public Property.

On June 11, 2026, the City filed the instant demurrer.

On June 29, 2026, Plaintiffs filed their opposition.

On July 6, 2026, the City filed its reply.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315 (E-Fab).) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to allege ultimate facts, not evidentiary facts. (See Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212 [“the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts”]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924 [“For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint”].)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer “in person, by video conference, or by telephone” in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that the City has fulfilled the meet and confer requirement. (Forsyth Decl., ¶ 3.)

Analysis

Dangerous
Condition of Public Property

City demurs to the sole cause of action asserted against it for Dangerous Condition of Public Property. The City argues that Plaintiffs' SAC does not state facts sufficient to constitute a cause of action against the City.

“A public entity is liable for injury caused by a dangerous condition of its property if (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition proximately caused the injury; (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred; and (4) (a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the condition or (b) the public entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (Zuniga v. Housing Authority (1995) 41 Cal.App.4th 82, 92–93.)

The City argues that Plaintiffs' SAC improperly relies on the lack of crossing features, such as crosswalk markings, as the basis for a dangerous condition and attempts to circumvent Government Code section 830.4 by characterizing the alleged condition as a combination of factors, including the lack of a marked crosswalk, high-speed traffic, significant traffic volume, and the absence of traffic-calming features. (Demurrer, pp. 11-12.)

In opposition, relying on Brenner v. City of El Cajon (2003) 113 Cal.App.4th 434 (Brenner) and Song X. Sun v. City of Oakland (2008) 166 Cal.App.4th 1177 (Sun), Plaintiffs contend that the SAC does not rely solely on the absence of a marked crosswalk but instead alleges that a combination of factors created a “trap-like” condition for pedestrians foreseeably crossing the roadway. (Opp., pp. 6-7.) Plaintiffs argue that although no single factor may constitute a dangerous condition, the totality of the circumstances is sufficient to state a cause of action for dangerous condition of public property. (Id. at p. 7.)

In reply, the City argues that Plaintiffs' theory of liability rests on the assertion that the subject intersection featured a hidden danger, yet the SAC fails to identify what that danger was. (Reply, p. 4.) The City further argues that neither Brenner nor Sun supports Plaintiffs' contention that a combination of otherwise non-dangerous conditions, together with the absence of a marked crosswalk, constitutes a dangerous condition. (Id. at pp. 4-5.)

Here, unlike the FAC, the SAC no longer relies solely on the absence of a crosswalk or pedestrian signage. Instead, Plaintiffs allege that the dangerous condition arose from the roadway's "physical configuration,"

including its wide, high-speed traffic lanes, significant traffic volume, lack of traffic-calming and visibility-enhancing features, and the absence of a safe and reasonably accessible alternative crossing. (SAC ¶¶ 18-21.) Plaintiffs further allege these factors combined to create a "trap-like" condition for pedestrians using an unmarked crosswalk by operation of law. According to Plaintiffs, the dangerous condition arises not from the absence of a marked crosswalk, but from the overall design and configuration of the roadway itself. (Ibid.)

The issue, therefore, is whether these additional allegations are sufficient to identify a dangerous physical condition of the property, rather than merely ordinary traffic conditions or the absence of additional pedestrian improvements.

In *Brenner*, the Court of Appeal explained that allegations of increased traffic, pedestrian activity, and the absence of traffic control devices, without identifying a dangerous physical characteristic of the roadway itself, are insufficient to state a dangerous condition claim. (*Brenner*, supra, 113 Cal.App.4th at 440-442.) There, the court concluded that allegations concerning increased traffic, nearby pedestrian destinations, and the absence of traffic regulation or safety devices failed to establish a dangerous condition because they did not identify any unusual physical characteristic of the roadway itself. (Id. at 440-443.)

Likewise, Plaintiffs themselves cite *Sun* for the proposition that a concealed trap may exist where the roadway contains hidden physical characteristics, such as "a sharp or poorly banked curve ahead on the road, a hidden intersection behind a promontory, or a design defect in the road that causes moisture to freeze and create an icy road surface." (Opp., p. 6, citing *Sun*, supra, 166 Cal.App.4th at 1193.) The court nevertheless concluded that no concealed or unusual physical characteristic of the roadway existed and therefore rejected the plaintiffs' dangerous condition claim. (*Sun*, supra, 166 Cal.App.4th at 1190-1193.)

Here, the SAC still does not identify any comparable concealed or unusual physical characteristic of the roadway. Beyond characterizing the roadway as having wide, high-speed traffic lanes, significant traffic volume,

and lacking traffic-calming, visibility-enhancing, or other pedestrian safety features, Plaintiffs do not allege a blind corner, obstructed sightlines, concealed intersection, unusual roadway geometry, inadequate lighting, or any other physical feature that rendered the intersection dangerous when used with due care. Likewise, although Plaintiffs repeatedly characterize the intersection as creating a "trap-like" condition, that allegation is unsupported by factual allegations identifying the alleged trap. Nor does Plaintiffs' allegation that Decedent was utilizing an unmarked crosswalk by operation of law alter this analysis. Rather, the SAC alleges only ordinary roadway conditions and the absence of additional pedestrian improvements, which, under Brenner and Sun, are insufficient to establish a dangerous condition of public property.

Accordingly, Plaintiffs have not cured the deficiency previously identified by the Court.

Even assuming Plaintiffs had adequately alleged a dangerous condition, the SAC still fails to sufficiently allege that the City had actual or constructive notice of that condition. Under Government Code section 835.2, subdivision (a), a public entity has actual notice only if it had "actual knowledge of the existence of the condition and knew or should have known of its dangerous character." Courts have likewise held that actual notice requires knowledge of "the particular dangerous condition in question," and that a public entity's general awareness that a condition may sometimes occur is insufficient. (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 513.)

Here, the SAC attempts to cure the notice deficiency by alleging two prior pedestrian collisions occurring in 2014 and 2018 near the subject intersection and asserting that those incidents were substantially similar to the incident at issue. (SAC ¶ 20.) However, the SAC still fails to allege facts demonstrating that the City had actual knowledge of the particular dangerous condition alleged in this action. Rather, Plaintiffs allege that the prior collisions were "substantially similar" and occurred under "similar roadway conditions," without alleging facts describing the circumstances of those incidents or explaining how they would have placed the City on notice of the specific dangerous condition alleged here. Accordingly, Plaintiffs have not sufficiently alleged actual or constructive notice under Government Code section 835.2.

Accordingly, Plaintiffs have not cured the deficiencies previously identified by the Court and have also not demonstrated how they could further amend to cure these defects. Therefore, the Court SUSTAINS WITHOUT LEAVE TO AMEND the City's demurrer.

Conclusion

Based on the foregoing, Defendant City of Downey's demurrer to Plaintiffs' Second Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.